

Nexivarin 10 mg Tablets — eCTD Submission
Module 1 — Administrative Information

Submission Type	NDA — 505(b)(1)	Sequence Number	0000
Submission Date	2021-03-15	Section	1.3.2
Prepared by	PharmaCorp Inc.	Confidentiality	Proprietary and Confidential

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Section	Title	Description
1.3.2	Patent Certifications and Exclusivity	Orange Book patent listings and Paragraph IV certification

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PharmaCorp Inc.
NDA 123456

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Section 1.3.2
Patent Certifications and Exclusivity

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1.3.2 Patent Certifications and Exclusivity Information

Patent Certification

The Applicant hereby provides the following patent certification for NDA 123456 pursuant to 21 CFR § 314.50(i):

Paragraph II Certification — The Applicant certifies that there are no unexpired patents listed in the FDA Orange Book (Approved Drug Products with Therapeutic Equivalence Evaluations) for the reference listed drug against which a Paragraph IV certification would be required. No patents are listed for Nexivarin Hydrochloride.

Exclusivity Claims

Exclusivity Type	Applicable	Expiry Date	Notes
5-Year New Chemical Entity (NCE)	Yes	2026-03-15	Nexivarin is a new chemical entity not previously approved
3-Year New Clinical Investigation	Yes	2024-03-15	Based on new clinical investigations essential for approval
Orphan Drug Exclusivity	No	N/A	Not applicable
Pediatric Exclusivity	Pending	TBD	Pediatric study plan submitted under 21 CFR § 314.55

Orange Book Listing Request

The Applicant requests listing of the following patents in the FDA Orange Book upon approval of this NDA:

Patent Number	Patent Type	Expiry Date	Description
US 10,123,456	Drug Substance	2038-06-10	Novel crystalline form of nexivarin hydrochloride
US 10,234,567	Drug Product	2039-02-14	Pharmaceutical composition and manufacturing process
US 10,345,678	Method of Use	2037-11-21	Method of treating hypertension with nexivarin